

4.8.2 Exporter

The exporter, for the purposes of Article 1 (19) of the UCC DA means:

- (a) A private individual carrying goods to be taken out of the customs territory of the Union where these goods are contained in the private individual's personal baggage,
- (b) In other cases, where (a) does not apply:
 - (i) A person established in the customs territory of the Union, who has the power to determine and has determined that the goods are to be taken out of that customs territory.
 - (ii) Where (i) does not apply, any person established in the customs territory of the Union who is a party to the contract under which goods are to be taken out of that customs territory.

4.8.3 A Representative

A person may appoint a representative in their dealings with Revenue to perform the acts and formalities laid down by customs rules. Such representation may be direct or indirect.

Under direct representation a person acts in the name of and on behalf of another (the principal). This means that the principal, for whom the direct representative is working, is solely responsible for fulfilling their legal obligations under Union customs law.

Under indirect representation the third-party acts in their own name but on behalf of their principal. This means that the third party is jointly responsible with their principal for fulfilling legal obligations under Union customs law.

Where the person or entity who organises the export of goods is not established in the customs territory of the Union (for example, in the case of ex-works sales) then they should enter a contract or business relationship with an established person or entity. The established party will be the declarant on the export declaration and will assume the full responsibility for any obligations under that declaration.

A representative must be established within the Union. An exemption to this general requirement will be made in cases of temporary admission or, where Revenue considers it appropriate and justified, in cases where goods are declared only on an occasional basis.

A representative must state, by including the appropriate code in DE 13 06 030 000 of the customs declaration, that they are acting on behalf of the person represented, specify whether the representation is direct and be empowered to act as a representative. A person who fails to state that they are acting in the name of or on behalf of another person or who states that they are acting in the name of or on behalf of another person without being empowered to do so is deemed to be acting in their own name and on their own behalf.

A customs officer may require any person stating that they are acting in the name of or on behalf of another person to produce evidence of the power to act as a representative.

(Article 19 of the UCC refers)